

TENTATIVE RULING

Case: **Vorhees v. Elfen**
Case No. CV2024-2427

Hearing Date: **February 6, 2026** **Department Eleven** **9:00 a.m.**

Defendant Kristie Lynn Elfen’s motion for judgment on the pleadings is **GRANTED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 438, subd. (c)(1)(B).) Plaintiff James Patrick Vorhees is not a person identified in Code of Civil Procedure section 377.60. (See Code Civ. Proc., § 377.60; Complaint, p. 1.) Further, plaintiff does not allege that defendant caused the death of another person. (*Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 390; Code Civ. Proc., § 377.60; Complaint, pp. 1 & 3.) Therefore, the complaint does not state facts sufficient to constitute a cause of action for wrongful death against defendant. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) The Court does not permit leave to amend because there is no “reasonable possibility...plaintiff can state a good cause of action.” (*Virginia G. v. ABC Unified School Dist.* (1993) 15 Cal.App.4th 1848, 1852.)

The jury trial, set for March 2, 2026, and the trial readiness conference, set for February 9, 2026, are **VACATED**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.